

	DATASSIST PERSONAL DATA PROCESSING AND PROTECTION POLICY				
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DATASSIST PERSONAL DATA PROCESSING AND PROTECTION POLICY

Datassist Bilgi ve Teknoloji A.Ş. ("Datassist") is committed to the security of your Personal Data. We ensure that all personal data belonging to persons making use of our products and services, and all others related to Datassist are processed and stored in accordance with the Personal Data Protection Law numbered 6698 ("PDPL") (*). We process your Personal Data as explained in the policy below and within the limits imposed in the legislation.

(*) "PDPL" (Personal Data Protection Law numbered 6698 in Turkey) is equivalent to "GDPR" (EU General Data Protection Regulation).

A. PURPOSE

This Personal Data Processing and Protection Policy ("**Policy**") is the main policy to which **Datassist Bilgi Teknolojileri A.Ş. ("Datassist")** shall adhere when fulfilling its obligations imposed by the Personal Data Protection Law numbered 6698 ("PDPL") and associated legislation.

B. SCOPE

This Policy applies to all Personal Data collected or processed by or shared with Datassist during its activities, including employees, clients, website visitors and mobile application users, and is binding upon Datassist, its departments, and its employees.

C. DEFINITIONS

- **Personal Data:** Any and all information that either on its own or when used in conjunction with other information available, enables Datassist to identify a Data Subject.
- **Private Personal Data:** Information relating to the race, ethnicity, political views, faiths, creeds and other beliefs, appearance, association or union membership, health status, sexual preferences, convictions, security measures as well as biometric and genetic data of persons.
- **Personal Medical Data:** Any and all medical information relating to an identified or identifiable real person.

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- **Data Processing:** All operations performed on Personal Data, including collection, storage, safekeeping, amendment, rectification, disclosure, transfer, receipt, making available, classification, or making unavailable.
- **Data Subject:** All reap persons whose Personal Data are processed by or on behalf of Datassist.
- **Explicit Consent:** Permission given on a specific subject with the free will of an individual after being informed.
- **Disposal (or Purge):** The deletion or destruction of Personal Data.
- **Anonymized Data:** Personal Data which cannot be associated with an identified or identifiable real person, either by the data controller or another person who may identify the Data Subject, even after the use of all reasonable and common methods.
- **Data Processor:** A real person or entity who processes personal data with the authorization and on behalf of the Data Controller. The Data Processor may be different in each specific case.
- **Data Controller:** A real person or entity who determines the purposes and means for processing Personal Data, and is responsible for building and maintaining a data recording system. Data Controller may be Datassist or third parties authorized by or on behalf of Datassist from time to time. The Data Controller may be different in each specific case.
- **Board:** The Personal Data Protection Board.

D. PROCESSING PERSONAL DATA

1. PRINCIPLES

Datassist shall adhere to the following principles in all activities regarding the collection and processing of Personal Data:

a. Compliance and law and integrity

All Personal Data shall be collected and processed in compliance with law and the rules of integrity.

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b. Accuracy and currency as necessary

When required for the purpose for which Personal Data is collected and processed, Datassist shall:

Take reasonable measures to ensure Personal Data is complete, accurate and current;

Update Personal Data when notified of changes by Data Subjects;

Take reasonable measures to update, correct or delete incomplete or inaccurate data.

c. Defined, open and legitimate purposes

- Datassist warrants that it shall only collect and process Personal Data as necessary and for a legitimate business purpose. Except where permitted or necessitated by law, Datassist shall not collect and/or process Personal Data for purposes that are expected to emerge in the future. Except where the processing of Personal Data is permitted or necessitated by law, the data collected shall only be processed in accordance with the legitimate purpose stated before the collection of data, and in accordance with an approval or, if necessary, an Explicit Consent.
- When the Explicit Consent of a Data Subject must be obtained in accordance with the data collection method and this Policy before a data collection activity, Datassist shall use a consent form or an online platform for obtaining consent.
- In cases where Personal Data is processed by third-party Data Processors on behalf of Datassist, third parties shall be required to make a written and contractual undertaking to comply with the obligations set forth in this Policy.

d. Retention for periods specified by law or necessary for the purpose

- Personal Data shall be stored for the maximum retention period applicable to the purpose for processing. This period may be extended to comply with legal obligations or to protect legitimate business interests.
- After the expiry of legal, administrative or commercial retention periods, Personal Data that is no longer needed shall be deleted, destroyed or anonymized according to the legislation and the Datassist Personal Data Retention and Disposal Policy ("Disposal Policy").
- Datassist is responsible for the disposal of all Personal Data in its physical and electronic data registries in accordance with the legislation when the purpose for collecting such data ceases to exist and retention periods expire.

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- All procedures related to the deletion, destruction or anonymization of Personal Data shall be recorded, and such records shall be retained for at least three years irrespective of other statutory obligations.

2. DATA COLLECTION AND PROCESSING

Datassist shall collect and process Personal Data in accordance with the following legal requirements:

2.1 Consent

Personal Data shall be processed after the Data Subject provides a written or electronic Explicit Consent to the collection and/or processing of Personal Data upon being informed in accordance with the law and this Policy. In case of processing Personal Medical Data, Explicit Consent must be in writing. Explicit Consent statements received shall be documented and stored in physical or electronic media. Personal Data may be processed without the Data Subject's consent in the following circumstances stated in the PDPL:

- Clearly specified in law;
- Being required to protect the life or physical integrity of a person who is unable to provide consent due to physical impossibilities or whose consent is not legally recognized;
- Requirement to process Personal Data of contract parties, provided that doing so is directly linked to the execution or implementation of a contract;
- Requirement for the Data Controller to fulfill their legal obligations;
- Made public by the Data Subject;
- Requirement to process Personal Data for establishing, exercising or protecting a right;
- Provided that the fundamental rights and freedoms of the Data Subject are not violated, requirement to process Personal Data for the legitimate interests of the Data Controller.

2.2 Private Personal Data

Private Personal Data may only be processed with the Data Subject's Explicit Consent, and where clearly permitted by law with the exception of data relating to health or sexual preference (for example, under conditions specified in 2.1 above). Data relating to health and sexual preference may only be processed without the data subject's Explicit Consent if said processing is performed by Third parties under confidentiality obligations and for the purposes of protecting public health, rendition of preventive medicine, diagnosis, treatment and care services, and the planning and management of medical services and financing. The processing of Private Personal Data must be in compliance with the resolutions of the Personal Data Protection Board.

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3. TRANSFERS OF PERSONAL DATA

3.1 Personal Data may only be transferred to third parties located in Turkey with the Data Subject's Explicit Consent, and under the circumstances specified in 2.1 above, where Explicit Consent is not required.

3.2 When transferring Personal Data to third parties located abroad, the following conditions shall apply in addition to those specified in 3.1:

- The foreign country receiving Personal Data provides adequate protection; or
- If the country does not provide adequate protection, Datassist and the data controllers in the foreign country provide written statements of adequate protection and the permission of the Board is received.

4. RIGHTS AND OBLIGATIONS

4.1 Rights of the Data Subject

Real persons whose Personal Data is collected or processed by Datassist have the right to apply to the Data Controller pursuant to the PDPL.

Applying Data Subjects may submit the following requests in writing or email to Datassist or its representatives using the contact information given in the last section of this Policy:

- a. Learning whether Personal Data is processed;
- b. If Personal Data has been processed, obtaining information about such processing;
- c. Learning the purpose for which Personal Data has been processed and whether these are appropriate;
- d. Learning the third parties in Turkey and abroad to which Personal Data has been transferred;
- e. Rectification of incomplete or inaccurate Personal Data;
- f. Deletion or destruction of Personal Data in accordance with the Law;
- g. Notification of the procedures in (d) and (e) above to third persons to whom Personal Data has been transferred;
- h. Appealing against an unfavorable outcome that is the result of the analysis of Personal Data solely by automated systems;
- i. Indemnification if a loss has been incurred as a result of the unlawful processing of Personal Data.

4.2 Obligations of the Data Controller

4.2.1. Obligation to Inform

Datassist shall provide an informative, clear and understandable notification to Data Subjects during the collection of their Personal Data regarding how Personal Data will be

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processed and the purposes of Data Processing, and ensure that Data Subjects are adequately informed of their rights and have reasonable access to their Personal Data processed by Datassist.

Notification to Data Subjects must contain the following at a minimum:

- Identity of the Data Controller or representative, if any
- The purpose, method and legal grounds of Data Processing
- To whom Personal Data may be transferred, and for what purpose;
- Statutory rights of individuals in Article 4.1 above.

4.2.2 Data Security Obligations

In accordance with the legislation, Datassist shall take the technical and administrative measures to ensure that:

- Personal Data is not unlawfully processed;
 - Personal Data is not unlawfully accessed;
 - The misuse, disclosure, alteration and destruction of Personal Data is prevented.
- a) Datassist performs or procures others to perform audits that will ensure Personal Data security.
- b) With respect to Personal Data collected and/or processed as part of Datassist's activities, Datassist shall: (i) keep them confidential in accordance with PDPL provisions and the Policy;
- (ii) not use Personal Data for purposes other than the processing purpose; (iii) prohibit Data Processing activities by all employees who are not involved in the processing of Personal Data as part of their job duties; and (iv) enable access to Personal Data to the extent necessary for them to perform their job duties. This obligation shall survive the separation of such employees.
- c) If the processed Personal Data is acquired by third persons by unlawful means, Datassist shall immediately notify this to the Data Subject and Board.

4.2.3 Registration in the Data Controller Registry

Datassist shall register to the Data Controller Registry to be created by the Personal Data Protection Board in accordance with the Data Controller Registry Directive, and fulfill the obligations imposed by the Regulations. The following information will be made publicly available:

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- Name, address and KEP address ("Registered Electronic Mail"), if obtained, of the Data Controller, the Data Controller representative if any, and contact person
- The purpose for which Personal Data may be processed
- The group of people who are Data Subjects, and the associated data categories
- The recipients and recipient groups to whom Personal Data may be transferred
- Personal Data which is planned to be transferred to foreign countries
- Registration date and registration expiry date
- Measures to ensure Personal Data security
- The maximum retention time that applies to the purpose for which Personal Data is processed.

E. REVISIONS AND EFFECTIVE DATE

The provisions of this Policy may be revised or changed by Datassist when necessary or as required by the applicable legislation, and published online to become effective. Any amendments to the provisions of this Policy shall become effective on the date published.

This Policy was published and became effective in October 2016.

DATASSİST Bilgi Teknolojileri A.Ş.

E-mail: kvkk.bilgi@datassist.com.tr

DATASSİST BİLGİ TEKNOLOJİLERİ A.Ş.
BANKALAR CAD. BOZKURT HAN NO:3 KAT:1 KARAKÖY - İSTANBUL
Tel: +90 444 4 923 FAX:0212 251 40 22



Preparer	Enforcement Approval
YAĞMUR TEKE IT Quality Management Officer	UMUT ÖZBAĞCI CEO

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